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Case Number: 24STCV08182 Hearing Date: June 30, 2026 Dept: 224

Chavez v. Cool Transports, Inc. et al.

TENTATIVE RULING

1. The Motion as to Prime Medical Resources is GRANTED. The request for sanctions is DENIED.
2. The Motion as to Prime Physical Therapy Network is GRANTED.
3. The Motion as to TBI Analytics, Inc. is DENIED as untimely.
4. The Motion as to MedLegal Solutions, Inc. dba GRS Funding is DENIED as untimely.
5. The Motion as to Global Lien Doctors is DENIED as untimely.

Motions to Compel Compliance with Deposition Subpoena

On March 29, 2024, Plaintiff Erika Chavez filed the Complaint in this action arising out of a motor vehicle accident on December 27, 2023.

On September 29, 2025, Defendant Van Dyk Tank Lines, Inc. dba Cool Transports filed its Motion to Compel Compliance with Deposition Subpoena for Production of Business Records Issued to TBI Analytics, Inc.

On December 9, 2025, Defendant filed its Motion to Compel Compliance with Deposition Subpoena for Production of Business Records Issued to Prime Medical Resources.

On December 19, 2025, Defendant filed its Motion to Compel Compliance with Deposition Subpoena for Production of Business Records Issued to Medlegal Solutions Inc. dba GRS Funding.

On December 26, 2025, Defendant filed its Motion to Compel Compliance with Deposition Subpoena for Production of Business Records Issued to Global Lien Doctors.

On January 15, 2026, Defendant filed its Motion to Compel Compliance with Deposition Subpoena for Production of Business Records Issued to Prime Physical Therapy Network.

On June 18, 2026, non-parties TBI Analytics, Inc, Medlegal Solutions, and Global Lien Doctors filed their oppositions.

On June 23, 2026, Defendant filed replies.

No opposition was filed as to the motions issued to Prime Medical Resources or Prime Physical Therapy Network.

Legal Standard

A party seeking discovery from a person who is not a party to the action may obtain discovery by oral deposition, written deposition, or deposition subpoena for production of business records. (Code Civ. Proc., § 2020.010.) A deposition subpoena may command: (1) only the attendance and testimony of the deponent,

(2) only the production of business records for copying, or (3) the attendance and testimony of the deponent, as well as the production of business records, other documents, electronically stored information, and tangible things. (Code Civ. Proc., § 2020.020.)

Service of a deposition subpoena shall be effected a sufficient time in advance of the deposition to provide the deponent a reasonable opportunity to locate and produce any designated documents and, where personal attendance is commanded, a reasonable time to travel to the place of deposition. (Code Civ. Proc., § 2020.220, subd. (a).) Personal service of any deposition subpoena is effective to require a deponent who is a resident of California to: personally appear and testify, if the subpoena so specifies; to produce any specified documents; and to appear at a court session if the subpoena so specifies. (Code Civ. Proc., § 2020.220, subd. (c).) A deponent who disobeys a deposition subpoena may be punished for contempt without the necessity of a prior order of the court directing compliance by the witness. (Code Civ. Proc., § 2020.240.)

A "written notice and all moving papers supporting a motion to compel an answer to a deposition question or to compel production of a document or tangible thing from a nonparty deponent must be personally served on the nonparty deponent unless the nonparty deponent agrees to accept service by mail, or electronic service, at an address, or electronic service address, specified on the deposition record." (Cal. Rules of Court, Rule 3.1346.)

Personal service of a deposition subpoena obligates any resident of California to appear, testify and produce whatever documents or things are specified in the subpoena; and to appear in any proceedings to enforce discovery. (CCP § 2020.220(c).) The deposition subpoena is enforceable by a motion to compel compliance brought pursuant to CCP § 1987.1.

Discussion

Defendant Van Dyk Tank Lines, Inc. dba Cool Transports moves to compel non-parties Prime Medical Resources, Prime Physical Therapy Network, TBI Analytics, Inc., Medlegal Solutions Inc. dba GRS Funding, and Global Lien Doctors, to comply with Deposition Subpoenas for Production of Business Records served on May 28, 2025. Each of the subpoenas requests "Records pertaining to the 12/27/2023 date of loss, including but not limited to, applications, forms, case review, agreements, contracts, records of contact, correspondence, correspondence with the client's legal counsel, records of payment made to or on behalf of Erika

Chavez, payment summaries, medical liens, if any, and records of payment(s) to medical providers, if any. To include scanned documents, documents stored electronically, digitally, on flash drive, hard drive, or other storage device.” Defendant also requested certified copies of Non-Party’s complete file, including but not limited to twenty-four items.” (Kim Decl.)

Defendant contends Non-Parties complied in part but failed to provide other documents that are responsive to Defendant’s subject subpoenas. Defendant now moves to compel compliance with the subpoenas.

A motion to compel production of documents at a deposition requires filing a separate statement. (Cal. Rules of Court, Rule 3.1345(a)(5).) Moving Party has fulfilled the requirement to file a separate statement.

Timeliness

First as to timeliness, CCP § 2025.480(b) requires that a motion be made no later than “60 days after the completion of the record of the deposition.” Courts have construed this to mean the date upon which the party noticing a subpoena receives objections to that subpoena. (See *Unzipped Apparel, LLC v. Bader*, supra, 156 Cal.App.4th at 136.)

As to Prime Medical Resources and Prime Physical Therapy Network, the non-parties never served written objections, and because the production remains incomplete, the Court concludes that the “record of the deposition” has not been completed within the meaning of Code of Civil Procedure section 2025.480(b). (*Unzipped Apparel*, supra, 156 Cal.App.4th at p. 136.) The motion is therefore timely as to Prime Medical Resources and Prime Physical Therapy Network only.

However, the Motions are untimely as to TBI Analytics, MedLegal Solutions dba GRS Funding, and Global Lien Doctors.

TBI served its objections on June 27, 2025. Thus, the 60-day period of Code of Civil Procedure § 2025.480(b), began to run on that date and expired on August 26, 2025. Defendant did not file or serve its motion until September 29, 2025. In reply, Defendant contends the 60-day period runs from the date of production, July 30, 2025, rather than the date of objection. The Court rejects that contention. Defendant cites no authority for a production-based trigger, and the controlling cases hold that the period runs from service of the non-party’s objection. The motion is untimely.

GRS served its objections on September 26, 2025. Thus, 60-day period began to run on that date and expired on November 25, 2025. Defendant did not file or serve its motion until December 19, 2025. As with the TBI motion, Defendant contends in reply that the period runs from the October 22, 2025 production date. The Court rejects that contention for the reasons stated above. The motion is untimely.

GLD served its objection on October 3, 2025, the 60-day period expired on or about December 2, 2025, and Defendant did not file the motion until December 26, 2025. The motion is untimely.

When further documents are produced after initial objections, the 60-day deadline is not reset or extended. The record of deposition remains complete as of the date objections were served, regardless of subsequent voluntary productions. (*Rutledge v. Hewlett–Packard Co.*, 238 Cal.App.4th 1164 (2015).)

Further, the deadline is mandatory. (*Unzipped Apparel*, supra, 156 Cal.App.4th 123 (2007).) California courts treat discovery deadlines as jurisdictional, meaning trial courts can only deny untimely motions. (*Thai v. Richmond City Center, L.P.*, 86 Cal.App.5th 282 (2022).)

Accordingly, the Motions to Compel Compliance as to TBI Analytics, MedLegal Solutions dba GRS Funding, and Global Lien Doctors, are DENIED as untimely.

Accordingly, the Court only addresses the substance of the Prime Medical Resources and Prime Physical Therapy Network subpoenas below.

Prime Medical Resources (PMR)

The subpoena seeks PMR's imaging records, billing records, lien information, EMR contents and audit logs, communications with Plaintiff's legal team, and reimbursement and chargemaster data bearing on the reasonable value of lien-based imaging services. PMR, the imaging facility associated with Prime Physical Therapy Network, produced no documents and offered no reason for noncompliance.

Here, PMR has not filed an opposition and has not presented any justification for non-compliance. The subpoenaed requests are directly relevant to Plaintiff's medical treatment and the reasonable valuation of medical expenses. California law provides for broad discovery, including materials that may lead to admissible

evidence. (Code Civ. Proc., §2017.010; Gonzalez v. Sup. Ct. (1995) 33 Cal.App.4th 1539, 1546.) The motion is otherwise in accordance with the requirements of CCP § 1987.1.

PMR is ordered to comply.

Prime Physical Therapy Network (PPTN)

The subpoena seeks PPTN's records pertaining to the date of loss, including billing and payment records, medical liens, lien and payment agreements, EMR contents and audit logs, and communications with Plaintiff's counsel. PPTN produced medical records and billing records but withheld the remaining responsive categories, including lien, financial, EMR, and communication records.

Here, PPTN has not filed an opposition and has not presented any justification for non-compliance. The subpoenaed requests are directly relevant to Plaintiff's medical treatment and the reasonable valuation of medical expenses. California law provides for broad discovery, including materials that may lead to admissible evidence. (Code Civ. Proc., §2017.010; Gonzalez v. Sup. Ct. (1995) 33 Cal.App.4th 1539, 1546.) The motion is otherwise in accordance with the requirements of CCP § 1987.1.

PPTN is ordered to fully comply.

Sanctions

The court must impose a monetary sanction against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel an answer or production, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust. (CCP §2025.480.) Here, sanctions are not available under Code of Civil Procedure section 2025.480 because neither PMR or PPTN made or opposed this motion.

The Court further declines to impose sanctions under Code of Civil Procedure section 2023.030 as Moving Party requests.

In *City of Los Angeles v. Pricewaterhousecoopers, LLP* (2024) 17 Cal.5th 46 (PwC), the Supreme Court observed: "It is already well-established that a court may not rely on [Code of Civil Procedure] section 2023.030 to override the limitations

prescribed by any other applicable sanctions provision in the [Civil Discovery] Act. A court may invoke its independent authority to impose sanctions under sections 2023.010 and 2023.030 only when confronted with an unusual form of discovery abuse, or a pattern of abuse, not already addressed by a relevant sanctions provision. And where it invokes that authority, it is constrained by the long-settled rules generally governing the imposition of discovery sanctions under the Act.” (PwC, supra, 17 Cal.5th at pp. 74-75.) Code of Civil Procedure section 2031.300, subdivision (c), limits the Court’s authority to impose sanctions when (as here) the non-moving party does not oppose a successful motion to compel responses to an inspection demand.

Because Moving Party has not shown that the failure to serve complete discovery responses is “an unusual form of discovery abuse, or a pattern of abuse, not already addressed by a relevant sanctions provision” (see PwC, supra, 17 Cal.5th at pp. 74-75), the Court declines to invoke its independent authority to impose sanctions under Code of Civil Procedure section 2023.030.

The request for sanctions is DENIED.

Conclusion

1. The Motion as to Prime Medical Resources is GRANTED. The request for sanctions is DENIED. Further responses are due within 30 days.
2. The Motion as to Prime Physical Therapy Network is GRANTED. Further responses are due within 30 days.
3. The Motion as to TBI Analytics, Inc. is DENIED as untimely.
4. The Motion as to MedLegal Solutions, Inc. dba GRS Funding is DENIED as untimely.
5. The Motion as to Global Lien Doctors is DENIED as untimely.

Parties who intend to submit on this tentative must send an email to the Court at indicating intention to submit on the tentative, and copying all parties in the email communication. Please be advised that if you submit on the tentative and elect not to appear at the hearing, the opposing party may nevertheless appear at the hearing and argue the matter. Unless you receive a submission from all other parties in the matter, you should assume that others might appear at the hearing to argue. If the Court does not receive emails from the parties indicating submission on this tentative ruling and there are no appearances at the hearing, the Court will adopt the tentative as the final order, or take the matter off calendar at its discretion.